Dinesh Chandra And 2 Others vs State Of U.P. And Another on 22 August, 2024

Author: Raj Beer Singh

Bench: Raj Beer Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:134939

Court No. - 76

Case :- APPLICATION U/S 482 No. - 22849 of 2024

Applicant :- Dinesh Chandra And 2 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Rajeev Sawhney,Raju Kumar

Counsel for Opposite Party :- G.A.

Hon'ble Raj Beer Singh,J.

1. Heard learned counsel for the applicants, learned A.G.A. for the State and perused the record.

2. This application u/s 482 Cr.P.C. has been filed for quashing of the entire proceedings, including charge-sheet dated 17.11.2023 as well as cognizance/summoning order dated 18.01.2024, of Case No. 79 of 2024 (State Vs. Surjeet @ Sonu and Others), arising out of case crime no. 561 of 2023, under Sections - 406 I.P.C. and 3/4 D.P. Act, Police Station - Chhibramau, District- Kannauj.

3. It is submitted by learned counsel for applicants that the allegations made against applicants are wholly false and no case is made out against them. It was stated that at the time of alleged ring

ceremony, applicants have never demanded any money or gift and whatever things or cash was given by the informant that was on their own wish and thus, no offence under Section - 406 I.P.C. is made out. In this connection, learned counsel has also referred case of Prof. R.K. Vijayasarathy and Another vs. Sudha SeethaRam and Another (Criminal Appeal No. 238 of 2019), decided on 15.02.2019. It is further submitted that applicants have never refused for marriage of applicant no.3 with the daughter of informant nor the informant has ever demanded his gifts/articles back and thus no case is made out against applicants.

4. Learned A.G.A. has opposed the application and submits that as per prosecution version, the marriage of daughter of informant was fixed with applicant no.3 and in the ring ceremony Rs.2 lakhs in cash, one golden ring and other gifts were given to the applicants-accused and expenses of programme were also borne by the informant but later on applicants have made demand of Rs.15 lakhs and they refused for marriage of the applicant no.3 with the daughter of informant, without fulfillment of the said dowry demand and thus, a prima facie case is made out against applicants.

5. I have considered the rival submissions and perused the record.

6. The legal position on the issue of quashing of criminal proceedings is well-settled that the jurisdiction to quash a complaint, FIR or a charge-sheet should be exercised sparingly and only in exceptional cases. However, where the allegations made in the FIR or the complaint and material on record even if taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused, the charge-sheet may be quashed in exercise of inherent powers under Section 482 of the Cr.P.C. In well celebrated judgement reported in AIR 1992 SC 605 State of Haryana and others Vs. Ch. Bhajan Lal, Supreme Court has carved out certain guidelines, wherein FIR or proceedings may be quashed but cautioned that the power to quash FIR or proceedings should be exercised sparingly and that too in the rarest of rare cases. In this connection, a reference may also be made to the case of R. Kalyani vs. Janak C. Mehta and Others, 2009 (1) SCC 516, Rupan Deol Bajaj vs. K.P.S. Gill (1995) SCC (Cri) 1059, Rajesh Bajaj vs. State of NCT of Delhi, (1999) 3 SCC 259 and Medchl Chemicals & Pharma (P) Ltd vs. Biological E Ltd. & Ors, 2000 SCC (Cri) 615. It has been held that if a prima facie case is made out disclosing ingredients of the offence, court should not quash the charge sheet/complaint. It is equally well settled that at this stage questions of fact cannot be examined and a mini trial cannot be held.

7. In the instant matter, perusal of record shows that as per prosecution version, the marriage of daughter of informant was fixed with applicant no.3 and 'ring ceremony' has taken place on 30.03.2023. During that ceremony, the informant has given Rs.2 lakhs cash and some other gifts including a ring. Applicants along with 60 guests have participated in the ceremony. Date of marriage of was fixed for 04.12.2023. The informant has also got booked Community Centre for marriage function. It was alleged that after ring ceremony, the applicants-accused started demanding Rs. 15 lakhs in dowry and when informant expressed his inability to fulfill the demand, the applicants refused for marriage of applicant no.3 with daughter of informant. It was also alleged that the gifts and cash given to applicants at the time of engagement ceremony were not returned back. The contention of learned counsel for applicants that applicants have never demanded any article or cash at the time of engagement and thus, the same cannot be termed as entrustment, is not

acceptable. In the aforesaid case of Prof. R.K. Vijayasarathy (supra), no such law has been laid down that the person entrusted with property has to demand entrustment of property to constitute offence under Section - 406 I.P.C. The allegation that the applicants have never made any demand of dowry or that informant did not ask to the return the gifts/cash given at the time of engagement, cannot be appreciated at this stage, as the same requires determination on questions of fact, which is not permissible at this stage. Considering entire facts of the matter, no case for quashing of impugned proceedings is made out. Hence, the prayer sought by applicants is refused.

9. However, it is directed that in case applicants file an application for discharge before the trial court concerned within a period of three weeks from today, the same shall be considered and decided expeditiously in accordance with law by the court concerned. It is further directed that for a period of three weeks from today and in case such an application for discharge is filed within the aforesaid period, till the disposal of discharge application, no coercive action shall be taken against the applicants, provided the applicants cooperate in early hearing of discharge application.

10. With the aforesaid observations, the instant application u/s 482 Cr.P.C. is disposed of.

Order Date :- 22.8.2024 S Rawat